

The Footwear Design and Development Institute Act, 2017

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Union of India - Act

The Footwear Design and Development Institute Act, 2017

UNION OF INDIA

India

The Footwear Design and Development Institute Act, 2017

Act 20 of 2017

Published on 4 August 2017

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The Footwear Design and Development Institute Act, 2017

(Act

No. 20 of 2017

)

[Dated 4th August, 2017]

Ministry of Law and Justice

(Legislative Department)

The following Act of Parliament received the assent of the President on the 4th August, 2017 and is hereby published for general information:-

An Act to establish and declare the Footwear Design and Development Institute as an institution of national importance for the promotion and development of quality and excellence in education, research and training in all disciplines relating

to footwear and leather products design and development and for matters connected therewith or incidental thereto.
Be it enacted by Parliament in the Sixty-eighth Year of the Republic of India as follows:-

Chapter I

Preliminary

1.

Short title and commencement.

(1)

This Act may be called the Footwear Design and Development Institute Act, 2017.

(2)

It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint; and different dates may be appointed for different provisions of this Act and any reference to the commencement in any such provision of this Act shall be construed as a reference to the commencement of that provision.

2.

Declaration of Footwear Design and Development Institute as an institution of national importance.

- Whereas the objects of the institution known as the Footwear Design and Development Institute, are such as to make it the institution of national importance, it is hereby declared that the Footwear Design and Development Institute is an institution of national importance.

3.

Definitions.

- In this Act, unless the context otherwise requires,-

(a)

"Chairperson" means the Chairperson of the Institute nominated under clause (a) of sub-section (3) of section 4;

(b)

"design" means a rational, logical and sequential innovation process for the purposes of transferring culture to viable products and services in footwear and leather products, including fashion and retail thereof and for providing a competitive edge to products and services;

(c)

"development" means the systematic use of scientific and technical knowledge to meet specific objective or requirements and includes an extension of the theoretical or practical aspects of concepts, design, discovery and invention including business thereof;

(d)

"Executive Director" means the Executive Director of the Institute campus appointed under section 18;

(e)

"Fund" means the Fund of the institute to be maintained under section 21;

(f)

"Governing Council" means the Governing Council of the Institute constituted under sub-section (3) of section 4;

(g)

"Institute" means the Footwear Design and Development Institute established under sub-section (1) of section 4;

(h)

"Institute campus" means an Institute campus specified in the Schedule;

(i)

"leather products" includes a product made of leather or any other material or combination thereof;

(j)

"Managing Director" means the Managing Director of the Institute appointed under section 16;

(k)

"Member" means a Member of the Governing Council and includes the Chairperson;

(l)

"notification" means a notification published in the Official Gazette;

(m)

"prescribed" means prescribed by rules made under this Act;

(n)

"Schedule" means the Schedule appended to this Act;

(o)

"Secretary" means the Secretary of the Institute appointed under section 17;

(p)

"Senate" means the Senate of the Institute referred to in section 13;

(q)

"Society" means the Footwear Design and Development Institute registered under the Societies Registration Act, 1860;

(r)

"Statutes" and "Ordinances" mean respectively the Statutes and the Ordinances of the Institute made under this Act.

Chapter II

The Institute

4.

Establishment of Institute.

(1)

On and from the date of commencement of this Act, the Footwear Design and Development Institute shall be established as a body corporate by the name aforesaid.

(2)

The Institute shall have perpetual succession and a common seal with power, subject to the provisions of this Act, to acquire, hold and dispose of property and to contract, and shall, by that name, sue or be sued.

(3)

The Institute shall consist of a Governing Council having the following Members, namely:-

(a)

a Chairperson, who shall be an eminent academician, scientist, or industrialist from leather sector, to be nominated by the Central Government;

(b)

the Managing Director, ex officio;

(c)

the Joint Secretary in the Ministry or Department in the Government of India dealing with Footwear Design and Development Institute, ex officio;

(d)

the Joint Secretary in the Ministry or Department in the Government of India dealing with the leather, retail or fashion sector, ex officio;

(e)

the Director Finance of the Ministry or the Department in the Government of India dealing with Footwear Design and Development Institute, ex officio;

(f)

a representative of Ministry or Department in the Government of India dealing with skill development and entrepreneurship, ex officio;

(g)

four professionals or industrialists to represent the Council for Leather Exports, the Indian Leather Garments Association, the Indian Footwear Components Manufacturers Association, and the Confederation of Indian Industry National Committee on Leather, Footwear and Leather Products, to be nominated by the Central Government; and

(h)

one person each from the National Institute of Fashion Technology, National Institute of Design, the Central Leather Research Institute, the Indian Institute of Technology and the Indian Institute of Management, to be nominated by the Central Government.

(4)

The term of office of the Chairperson and other Members, other than ex officio Members thereof, shall be three years and they shall be entitled for such allowances as may be determined by the Central Government.

(5)

The term of office of the Members nominated to fill a casual vacancy shall continue for the remainder of the term of the

Member in whose place he has been nominated.

(6)

The Governing Council shall meet at least two times in a year at such place and time and observe such rules of procedure in regard to the transaction of business at its meetings as may be determined by the Governing Council.

(7)

Save as otherwise provided in this section, the term of office of an ex officio member shall continue as long as he holds the office by virtue of which he is a member.

5.

Vesting of properties.

- On and from the date of commencement of this Act, subject to the other provisions of this Act, all properties which had vested in the Society, immediately before the commencement of this Act, shall on and from such commencement, vest in the Institute.

6.

Effect of incorporation of Institute.

- On and from the date of commencement of this Act,-

(a)

any reference to the Society in any contract or other instrument shall be deemed as a reference to the Institute;

(b)

all the rights and liabilities of the Society shall be transferred to, and be the rights and liabilities of, the Institute;

(c)

every person employed by the Society, immediately before the appointed day, shall hold office or service in the Institute by the same tenure, at the same remuneration and upon the same terms and conditions and with the same rights and privileges as to pension, leave, gratuity, provident fund and other matters as he would have held the same, if this Act had not been passed, and shall continue to be so, unless and until his employment is terminated or until such tenure, remuneration, terms and conditions are duly altered by the Statutes:

Provided that if the alteration so made is not acceptable to such employee, his employment may be terminated by the Institute in accordance with the terms of the contract with the employee or, if no provision is made therein in this behalf, on payment to him by the Institute of compensation equivalent to three months' remuneration in the case of permanent employee and one month's remuneration in the case of other employee;

(d)

every person pursuing, before the date of commencement of this Act, any academic or research course in existing Institute campus, shall be deemed to have migrated and registered with the corresponding Institute campus on such commencement at the same level of study in the Institute campus from which such person migrated; and

(e)

all suits and other legal proceedings instituted or which could have been instituted by or against the Society, immediately before the commencement of this Act shall be continued or instituted by or against the Institute.

7.

Functions of Institute.

- The functions of the Institute shall be-

(i)

to nurture and promote quality and excellence in education and research in the areas of footwear and leather products design and development and allied fields thereof;

(ii)

develop and conduct courses leading to graduate and post-graduate degrees, doctoral and post-doctoral courses and research in the areas of footwear and leather products design and development and allied fields thereof;

(iii)

to hold examinations and grant degrees, diplomas, certificates, or any other qualification;

(iv)

to institute fellowships, scholarships and confer awards, honorary degrees or other academic distinctions or titles;

(v)

to co-operate, associate and collaborate with educational or other institutions, research organisations or bodies

corporate in any part of the world having objects wholly or partly similar to those of the Institute by exchange of faculty members, students, staff and scholars and generally in such manner as may be conducive to their common objective;

(vi)

to conduct courses for teachers, technologists and other professionals in the areas of footwear and leather products design and development and allied fields thereof;

(vii)

to undertake research, survey, and studies and application thereof, for improved quality and design, testing, and international marketing;

(viii)

to provide consultancy, testing, inspection, certification, project implementation and design support to the institutions and industries in any part of the world;

(ix)

to develop an international centre for creation and transmission of information, with focus on educational, professional and industrial commitments;

(x)

to conduct skill development programs and to provide technical assistance to artisans, craftsmen, manufacturers, designers and exporters;

(xi)

to design, develop, amend, update curriculum's of the academic programs and training materials as per the sector's requirement and change of technology;

(xii)

to acquire any patent or license relating to such invention, improvement or design or standardisation marks whether for general or specific purposes;

(xiii)

to establish, form and maintain museums, libraries and collections of literature and films, slides, photographs, prototypes and other information;

(xiv)

to function as a National resource centre for curriculum development, training the trainers and support skill development in the leather sector overall;

(xv)

to frame the Statutes and the Ordinances and to alter, modify or rescind the same; and

(xvi)

to do all such things as may be necessary, incidental or conducive to the attainment of all or any of the objects of the Institute.

8.

Powers of Governing Council.

(1)

Subject to the provisions of this Act, the Governing Council, under overall control of the Central Government, shall be responsible for the general superintendence, direction and control of the affairs of the Institute and shall exercise all the powers not otherwise provided for by this Act, the Statutes and the Ordinances, and shall have the power to review the acts of the Senate.

(2)

Without prejudice to the provisions of sub-section (1), the Governing Council shall-

(a)

take decisions on questions of policy relating to the administration and working of the Institute;

(b)

institute academic and other posts and to make appointments thereto (except in the case of the Managing Director, Secretary and Executive Director);

(c)

frame the Statutes and the Ordinances and to alter, modify or rescind the same;

(d)

consider and pass resolutions on the annual report, the annual audited accounts and the budget estimates of the Institute for the next financial year as it thinks fit together with a statement of its development plans;

(e)

receive gifts, grants, donations or benefactions from the Government and to receive bequests, donations and transfers of movable or immovable properties from the testators, donors or transferors, as the case may be; and

(f)

do all such things as may be necessary, incidental or conducive to the attainment of all or any of the aforesaid powers.

(3)

The Governing Council shall have the power to appoint such committees, as it considers necessary for the exercise of its powers and the performance of its duties under this Act.

(4)

Notwithstanding anything contained in sub-section (2) of section 4, the Governing Council shall not dispose of in any manner any immovable property without the prior approval of the Central Government.

(5)

The Central Government may appoint one or more persons to review the work and progress of the Institute and to hold inquiries into the affairs thereof and to report thereon in such manner as the Central Government may direct.

(6)

Upon receipt of any such report, the Central Government may take such action and issue such directions as it considers necessary in respect of any of the matters dealt within the report and the Institute shall be bound to comply with such directions.

(7)

The Central Government shall have the power to remove Chairperson or other Members or reconstitute the Governing Council, if it considers it appropriate to do so.

(8)

No Chairperson or Member shall be removed under sub-section (7) unless he has been given a reasonable opportunity of being heard in the matter.

9.

Institute be open to all races, creeds and classes.

(1)

The Institute shall be open to persons of all sex and of whatever race, creed, caste or class, and no test or condition shall be imposed as to religious belief or profession in admitting or appointing members, students, teachers or workers or in any other connection whatsoever.

(2)

No bequest, donation or transfer of any property shall be accepted by the Institute, which in the opinion of the Governing Council involves conditions or obligations opposed to the spirit and object of this section.

10.

Teaching at Institute.

- All teaching at the campuses of the Institute shall be conducted by or in the name of the Institute in accordance with the Statutes and the Ordinances made in this behalf.

11.

Visitor.

- The President of India shall be the Visitor of the Institute.

12.

Authorities of Institute.

- The following shall be the authorities of the Institute, namely:-

(a)

a Governing council;

(b)

a Senate; and

(c)

such other authorities as may be declared by the Statutes to be the authorities of the Institute.

13.

The Senate.

- The Senate of the Institute shall consist of the following persons, namely:-

(a)

the Managing Director, ex officio who shall be the Chairperson of the Senate;

(b)

the Secretary, ex officio;

(c)

the Executive Directors of all Institute campus, ex officio;

(d)

all Senior Professors of the Institute;

(e)

three persons, not being employees of the Institute, to be nominated by the Chairperson in consultation with the Managing Director, from amongst educationists of repute, from the fields of footwear, science, engineering and humanities and one of them shall be woman;

(f)

one alumnus of the Institute to be nominated by the Chairperson in consultation with the Managing Director by rotation; and

(g)

such other members of the staff as may be laid down in the Statutes.

14.

Functions of Senate.

(1)

Subject to the provisions of this Act, the Statutes and the Ordinances, the Senate of the Institute shall be the principal academic body of the Institute and shall have the control and general regulation, and be responsible for the maintenance of standards of instruction, education and examinations in the Institute and shall exercise such other powers and perform such other duties as may be conferred or imposed upon it by the Statutes.

(2)

Without prejudice to the provisions of sub-section (1), the Senate shall have the following powers, namely:-

(a)

to specify the criteria and process for admission to courses or programmes of study by the Institute;

(b)

to recommend to the Governing Council for creation of teaching and other academic posts, determination of number and emoluments of such posts and defining the duties and conditions of service of teachers and other academic posts;

(c)

to recommend to the Governing Council for commencement of new programmes and course of study;

(d)

to specify academic contents of programmes and course of study and to undertake modifications therein;

(e)

to specify the academic calendar and approve grant of degrees, diplomas and other academic distinctions or titles; and

(f)

to exercise such other powers and discharge such other functions as may be assigned to it, by Statutes or by the Governing Council.

15.

Functions, powers and duties of Chairperson.

(1)

The Chairperson shall ordinarily preside at the meetings of the Governing Council and at the Convocations of the Institute.

(2)

The Chairperson shall exercise such other powers and perform such other duties as may be assigned to him by this Act or the Statutes.

(3)

The Chairperson shall have the authority to review periodically the work and progress of the Institute and to order enquiries into the affairs of the Institute.

16.

Managing Director.

(1)

The Managing Director of the Institute shall be appointed by the Central Government for a tenure of five years and on such terms and conditions of services as may be prescribed.

(2)

The Managing Director shall be the principal executive officer of the Institute and shall be responsible for the proper administration of the Institute and for imparting of instruction and maintenance of discipline therein.

(3)

The Managing Director shall exercise such other powers and perform such other duties as may be assigned to him by this Act, the Statutes and the Ordinances or delegated by the Governing Council or the Senate.

(4)

The Managing Director shall submit annual reports and accounts to the Governing Council.

(5)

The Central Government shall have the power to remove the Managing Director before the tenure of five years, if it considers it appropriate to do so on the grounds of misconduct or incapacity after giving him an opportunity of being heard in the matter.

(6)

The Managing Director shall be responsible for the implementation of the decision of the Governing Council and the Senate.

17.

Secretary.

(1)

The Secretary of the Institute shall be appointed by the Central Government for a tenure of five years and on such terms and conditions of service as may be prescribed.

(2)

The Secretary shall act as the Secretary of the Governing Council, the Senate and such committees as may be specified by the Statutes.

(3)

The Secretary shall be responsible to the Managing Director for the proper discharge of his functions.

(4)

The Secretary shall exercise such other powers and perform such other duties as may be assigned to him by this Act or the Statutes or the Managing Director.

18.

Executive Director.

(1)

The Executive Director of each Institute campus shall be appointed by the Central Government for a tenure of five years and on such terms and conditions as may be prescribed and shall exercise such powers and perform such duties as may be assigned to him by this Act or the Statutes or by the Managing Director.

(2)

The Executive Director shall be the principal academic and executive officer of the Institute campus and shall be responsible for the implementation of the decision of the Governing Council and the Senate and the day-to-day administration of the Institute campus in consultation with the Managing Director.

19.

Power and duties of other authorities and officers.

- The powers and duties of authorities and officers, other than those hereinbefore mentioned, shall be determined by the Statutes.

20.

Grants by Central Government.

- For the purpose of enabling the Institute to discharge its functions efficiently under this Act, the Central Government may, after due appropriation made by Parliament by law in this behalf, pay to the Institute in each financial year such sums of money and in such manner as it may think fit.

21.

Funds of Institute.

(1)

The Institute shall maintain a Fund to which shall be credited-

(a)

all moneys provided by the Central Government;

(b)

all fees and other charges received by the Institute;

(c)

all moneys received by the Institute by way of loans, grants, gifts, donations, benefactions, bequests or transfers; and

(d)

all moneys received by the Institute in any other manner or from any other source.

(2)

All moneys credited to the Fund shall be deposited in such banks or invested in such manner as the Institute may, with the approval of the Governing Council decide.

(3)

The Fund shall be applied towards meeting the expenses of the Institute, including expenses incurred in the exercise of its powers and discharge of its duties under this Act.

22.

Setting up of endowment fund.

- Notwithstanding anything contained in section 21, the Central Government may direct the Institute to-

(a)

set-up an endowment fund and any other fund for specified purpose; and

(b)

transfer money from its Fund to endowment fund or any other fund.

23.

Accounts and audit.

(1)

The Institute shall maintain proper accounts and other relevant records and prepare an annual statement of accounts, including the balance sheet, in such form as may be specified, in accordance with such general directions as may be issued by the Central Government in consultation with the Comptroller and Auditor-General of India.

(2)

The accounts of the Institute shall be audited by the Comptroller and Auditor-General of India and any expenditure incurred by him in connection with such audit shall be payable by the Institute to the Comptroller and Auditor-General of India.

(3)

The Comptroller and Auditor-General of India and any person appointed by him in connection with the audit of the accounts of the Institute shall have the same rights, privileges and authority in connection with such audit as the Comptroller and Auditor-General of India, generally has in connection with the audit of the Government accounts, and, in particular, shall have the right to demand the production of books, accounts, connected vouchers and other documents and papers and to inspect any of the offices of the Institute.

(4)

The accounts of the Institute as certified by the Comptroller and Auditor-General of India or any other person appointed by him in this behalf, together with the audit report thereon shall be forwarded annually to the Central Government and that Government shall cause the same to be laid before each House of Parliament.

24.

Pension and provident fund.

(1)

The Institute shall constitute, for the benefit of its employees, including the Managing Director in such manner and subject to such conditions as may be specified by the Statutes, such pension, insurance and provident funds as it may consider necessary.

(2)

Where any such provident fund has been so constituted, the Central Government may declare that the provisions of the Provident Funds Act, 1925 shall apply to such fund as if it were a Government Provident Fund.

25.

Appointment.

- All appointments of the staff of the Institute, except that of the Managing Director, Secretary and Executive Director shall be made in accordance with the procedure laid down in the Statutes by-

(a)

the Governing Council, if the appointment is made on the academic staff in the post of Assistant Professor or above or if the appointment is made on the nonacademic staff in any cadre, the maximum of the pay scale for which is the same or higher than that of Assistant Professor; and

(b)

the Managing Director, in any other case.

26.

Statutes.

- Subject to the provisions of this Act, the Statutes may provide for all or any of the following matters, namely:-

(a)

the formation of departments of teaching, centre of research, establishment of workshops, laboratories, studios;

(b)

the institution of fellowships, scholarships, exhibitions, medals and prizes;

(c)

the classification, term of office, qualification, the method of appointment and the determination of the terms and conditions of service of officers, teachers and other staff of the Institute;

(d)

the reservation of posts for the Scheduled Castes, the Scheduled Tribes and other backward categories of person as may be determined by the Central Government;

(e)

the constitution of pension, insurance and provident funds for the benefit of the officers, teachers and other staff of the Institute;

(f)

the constitution, powers and duties of the authorities of the Institute;

(g)

the manner of filling up of vacancies among members of the Governing Council;

(h)

the authentication of the orders and decisions of the Governing Council;

(i)

the meetings of the Governing Council, Senate or any Committee, the quorum at such meetings and the procedure to be followed in the conduct of their business;

(j)

conferment of honorary degree;

(k)

the establishment and maintenance of halls and hostels;

(l)

the conditions of residence of students of the Institute and the levying of the fees for residence in the halls and hostels and other charges; and

(m)

any other matter which by this Act is to be or may be specified by the Statutes.

27.

Statutes how made.

(1)

The first Statutes of the Institute shall be framed by the Governing Council with the previous approval of the Visitor and shall be laid as soon as may be before each House of Parliament.

(2)

The Governing Council may, from time to time, make new or additional Statutes or may amend or repeal the Statutes in the manner hereafter in this section provided.

(3)

Every new Statute or addition to the Statute or any amendment or repeal of a Statute shall require the previous approval of the Visitor who may remit it to the Governing Council for consideration.

(4)

A new Statute or a Statute amending or repealing an existing Statute shall have no validity unless it has been assented to by the Visitor.

28.

Ordinances.

- Subject to the provisions of this Act and the Statutes, the Ordinances of the Institute may provide for all or any of the following matters, namely:-

(a)

the admission of the students to the Institute;

(b)

the reservation for the Scheduled Castes, the Scheduled Tribes and other backward categories of persons;

(c)

the courses of study to be laid down for all degrees, diplomas and certificates of the Institute;

(d)

the conditions under which students shall be admitted to the degree, diploma and certificate courses and to the examinations of the Institute and award of degrees, diplomas and certificates;

(e)

the conditions for award of fellowships, scholarships, exhibitions, medals and prizes;

(f)

the conditions and mode of appointment and duties of examining body, examiners and moderators;

(g)

the conduct of examinations;

(h)

the maintenance of discipline among the students of the Institute;

(i)

the fees to be charged for courses of study in the Institute and for admission to the examinations of degrees, diplomas and certificates of the Institute; and

(j)

any other matter which by this Act or the Statutes is to be or may be provided for by the Ordinances.

29.

Ordinance how made.

(1)

Save as otherwise provided in this section, Ordinances shall be made by the Senate.

(2)

All Ordinances made by the Senate shall have effect from such date as it may direct, but every Ordinance so made shall be submitted, as soon as may be, to the Governing Council and shall be considered by the Governing Council at its next succeeding meeting.

(3)

The Governing Council shall have power by resolution to modify or cancel any such Ordinance and such Ordinance shall from the date of such resolution stand modified accordingly or cancelled, as the case may be.

30.

Tribunal of Arbitration.

(1)

Any dispute arising out of a contract between the Institute and any of its employees shall, at the request of the employee concerned or at the instance of the Institute, be referred to a Tribunal of Arbitration consisting of one member appointed by the Institute, one member nominated by the employee and an umpire appointed by the Visitor.

(2)

The decision of the Tribunal of Arbitration shall be final and shall not be questioned in any court.

(3)

No suit or proceeding shall lie in any court in respect of any matter which is required by sub-section (1) to be referred to the Tribunal of Arbitration.

(4)

The Tribunal of Arbitration shall have power to regulate its own procedure.

(5)

Nothing in any law for the time being in force relating to arbitration shall apply to arbitration under this section.

Chapter III

Miscellaneous

31.

Act and proceedings not to be invalidated by vacancies.

- No act of the Institute or Governing Council or Senate or any other body set-up under this Act or the Statutes, shall be invalid merely by reason of-

(a)

any vacancy in, or defect in the constitution thereof; or

(b)

any defect in the election, nomination or appointment of a person acting as a member thereof; or

(c)

any irregularity in its procedure not affecting the merits of the case.

32.

Sponsored schemes.

- Notwithstanding anything contained in this Act, whenever the Institute receives funds from any Government, the University Grants Commission or any other agency, including industry sponsoring a research scheme or a consultancy assignment or a teaching programme or a chaired professorship or a scholarship, etc., to be executed or endowed at the Institute-

(a)

the amount received shall be kept by the Institute separately from the Fund of the Institute and utilised only for the purpose of the scheme; and

(b)

the staff required to execute the same shall be recruited in accordance with the terms and conditions stipulated by the sponsoring organisations:

Provided that any money remaining unutilised shall be transferred to the endowment fund created under section 22 of this Act.

33.

Power of Institute to grant degree, etc.

- The Institute shall have the power to grant degrees, diplomas, certificates and other academic distinctions under this Act, which shall be equivalent to such corresponding degrees, diplomas, certificates and other academic distinctions granted by any University or Institute established or incorporated under any other law for the time being in force.

34.

Institute to be public authority under the Right to Information Act, 2005.

- The provisions of the Right to Information Act, 2005 shall apply to the Institute, as if it were a public authority as defined in clause (h) of section 2 of the Right to Information Act, 2005.

35.

Power of Central Government to make rules.

(1)
The Central Government may, by notification, make rules to carry out the purposes of this Act.

(2)
In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:-

(a)
the manner of appointment of the Managing Director, Secretary and Executive Director and terms and conditions of his services;

(b)
the terms and conditions of service of the Managing Director, Secretary and the Executive Director under sub-section (1) of section 16, sub-section (1) of section 17 and sub-section (1) of section 18;

(c)
the form and manner in which the books of account of the Institute shall be maintained under sub-section (1) of section 23; and

(d)
any other matter which is required to be, or may be, prescribed.

(3)
Every rule made under this section shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

36.
Returns and information to be provided to Central Government.

- The Institute shall furnish to the Central Government such returns or other information with respect to policies or activities as the Central Government may, for the purpose of reporting to Parliament or for the making of policy, from time to time, require.

37.
Transitional provisions.

- Notwithstanding anything contained in this Act-

(a)
the Governing Council of the Society functioning as such, immediately before the commencement of this Act shall continue to so function until a new Governing Council is constituted for the Institute under this Act, but on the constitution of a new Governing Council under this Act the members of the Governing Council holding office before such constitution shall cease to hold office;

(b)
until the first Statutes and the Ordinances are made under this Act, the rules and regulations, instructions and guidelines of the Society as in force, immediately before the commencement of this Act, shall continue to apply to the Institute insofar as they are not inconsistent with the provisions of this Act; and

(c)
any student who joined classes of the existing Institute on or after the academic year 2012-2013 or completed the course on or after the academic year 2013-2014 shall for the purposes of clause (iii) of section 7, be deemed to have pursued a course of study in the existing Institute if such student has not already been awarded degree or diploma for the same course of study.

38.
Statute and Ordinance to be published in the Official Gazette and to be laid before Parliament.

(1)
Every Statute or Ordinance made under this Act shall be published in the Official Gazette.

(2)

Every Statute or Ordinance made under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the Statute or Ordinance or both Houses agree that the Statute or Ordinance should not be made, the Statute or Ordinance shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that Statute or Ordinance.

(3)

The power to make Statutes or Ordinances shall include the power to give retrospective effect with the approval of the Central Government from a date not earlier than the date of commencement of this Act to Statutes or Ordinances or any of them but no retrospective effect shall be given to any Statute or Ordinance so as to prejudicially affect the interests of any person to whom such Statutes or Ordinances may be applicable.

39.

Power to remove difficulties.

(1)

If any difficulty arises in giving effect to the provisions of this Act, the Central Government may, by order published in the Official Gazette, make such provision or give such direction not inconsistent with the purposes of this Act, as appears to it to be necessary or expedient for removing the difficulty:

Provided that no such order shall be made after the expiry of two years from the date of commencement of this Act.

(2)

Every order made under this section shall be laid, as soon as may be after it is made, before each House of Parliament.

The Schedule

[See section 3(h)]

Institute Campuses

Sl. No.

Name of the State

Name and address of the existing Institute
campus and its location

(1)

(2)

(3)

1.

Uttar Pradesh

Footwear Design and Development Institute,
A-10/A, Sector-24, Noida, Gautam Budh Nagar, Pin-201301.

2.

Tamil Nadu

Footwear Design and Development Institute, Plot
No: E-1, SIPCOT Industrial Park, Irrungattukotai, Kancheepuram.

3.

West Bengal

Footwear Design and Development Institute,
Kolkata Leather Complex, Mouzakariadanga, J.L No-32 and Gangapur,
J.L No-35, Kolkata.

4.

Haryana

Footwear Design and Development Institute, Plot
No- 1, Sector-31 B, IMT Rohtak.

5.

Rajasthan

Footwear Design and Development

Institute, Village Mandor, Tehsil Jodhpur, District- Jodhpur.

6.

Uttar Pradesh

Footwear Design and Development Institute,

Sultanpur Road, Fursatganj, Raebareli, Pin-229302.

7.

Madhya Pradesh

Footwear Design and Development Institute,

Corner Plot, Khasara No:31, Nagpur-Batil Road, Immlikhera Chowk,
Chhindwara.

8.

Madhya Pradesh

Footwear Design and Development Institute, Gram

Maharajpura Panchayat, Hari Pur, Phawa No-42, Survey No.571/158,
61/1/1/1 on Gram Puraposar Road, Guna.

9.

Bihar

Footwear Design and Development Institute, Plot

No P-6, Megha Industrial Area, Moza Dumri, Arra Road, Patna.

10.

Telangana

Footwear Design and Development Institute,

LIDCAP Campus, HS Durga, Gachibowli, Bidar-Hyderabad Road,
Hyderabad.

11.

Gujarat

Footwear Design and Development Institute, Plot

No H-3301, Near ESIC Hospital, Ankleshwar Industrial Estate,
Ankleshwar.

12.

Punjab

Footwear Design and Development Institute,

District SAS Nagar (Mohali), Chandigarh-Patiala Highway,
Chandigarh.

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